

Opinion of the Court

II

Nevada v. Hall is contrary to our constitutional design and the understanding of sovereign immunity shared by the States that ratified the Constitution. *Stare decisis* does not compel continued adherence to this erroneous precedent. We therefore overrule *Hall* and hold that States retain their sovereign immunity from private suits brought in the courts of other States.

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Hall held that the Constitution does not bar private suits against a State in the courts of another State. 440 U. S., at 416–421. The opinion conceded that States were immune from such actions at the time of the founding, but it nonetheless concluded that nothing “implicit in the Constitution” requires States “to adhere to the sovereign-immunity doctrine as it prevailed when the Constitution was adopted.” *Id.*, at 417–418, 424–427. Instead, the Court concluded that the Founders assumed that “prevailing notions of comity would provide adequate protection against the unlikely prospect of an attempt by the courts of one State to assert jurisdiction over another.” *Id.*, at 419. The Court’s view rested primarily on the idea that the States maintained sovereign immunity vis-à-vis each other in the same way that foreign nations do, meaning that immunity is available only if the forum State “voluntar[ily]” decides “to respect the dignity of the [defendant State] as a matter of comity.” *Id.*, at 416; see also *id.*, at 424–427.

The *Hall* majority was unpersuaded that the Constitution implicitly altered the relationship between the States. In the Court’s view, the ratification debates, the Eleventh Amendment, and our sovereign-immunity precedents did not bear on the question because they “concerned questions of federal-court jurisdiction.” *Id.*, at 420. The Court also found unpersuasive the fact that the Constitution delineates several limitations on States’ authority, such as Article I